

Apparently, the Gun Knows Who Is Right: The Politics of Selective Accountability

When international law protects the rules more consistently than the people those rules were meant to protect.

Your correspondent from the DISEC floor, Ridha Methar.



There is something almost comforting about the way the international community discuss weapons.

We call them arms transfers. We call them defence assistance. We call them strategic partnerships. Give the same weapon to the wrong person, however, and suddenly it becomes a threat to international peace and security.

Apparently, the weapon itself knows the difference.

To be fair, weapons are not the problem. Not entirely.

Listening to the arguments around disarmament in DISEC, one thing becomes difficult to ignore: almost everyone agrees that weapons need regulation. But the disagreement begins when we ask whose weapons, supplied to whom, and under what circumstances.

In a world where borders can be crossed overnight, missiles can travel across in minutes and wars can begin before diplomats have finished drafting their statements; expecting every country to simply disarm would be naïve. States have a right and arguably a responsibility to protect their people.

But somewhere between defending a population and defending an interest, we seem to have misplaced the population.

The Arms Trade Treaty already recognises this problem. States are required to assess whether an arms transfer could contribute to serious violations of international humanitarian or

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<https://www.sipri.org/commentary/topical-backgrounders/2021/transfers-major-arms-afghanistan-between-2001-and-2020>

human-rights law, and exports are supposed to be refused where the risk is considered overriding.

So why does the problem continue?

Perhaps because international politics has a rather selective memory.

SIPRI reports that global transfers of major conventional weapons increased by 9.2% between 2016 to 20 and 2021 to 25, the highest level since the end of the Cold War. The United States alone accounted for 42% of global arms exports during that period. Meanwhile, SIPRI notes that arms exporters are often themselves stakeholders in the conflicts driving demand, which can make their foreign-policy interests rather difficult to separate from their humanitarian vocabulary.

And this is where the conversation becomes uncomfortable.

We condemn the state that arms a militant group we dislike. We defend the state that arms a government we support. We demand accountability when the weapons come from our opponent and call it security cooperation when they come from our ally.

At some point, **"who supplied the weapon?"** becomes less important than **"whose side are they on?"**

Afghanistan has shown how weapons and political decisions can have consequences long after the original strategic calculation is forgotten. SIPRI's own transfer records show that international backers delivered roughly 25,000 Humvees to Afghan security forces over the course of the war vehicles that, when the government collapsed in 2021, passed directly into Taliban hands along with the rest of a two-decade arsenal.

Gaza has made the question of arms transfers impossible to separate from civilian protection. And across conflicts such as Sudan, Libya and Yemen, tracing weapons is complicated by secrecy, diversion and competing external interests. SIPRI has specifically documented the difficulty of tracking transfers in conflicts where secrecy is high.

This does not mean that every state should be forbidden from supporting an armed partner. States may have legitimate security interests. But if a government chooses to supply weapons, it should also choose to accept responsibility for what follows.

If the recipient uses those weapons to attack civilians, "we didn't directly do it" should not be the entire defence.

The international community therefore needs more than another beautifully worded resolution. It needs independent investigations into serious allegations, transparent tracking of international arms transfers and consequences that do not mysteriously disappear when the accused happens to be politically useful.

And perhaps the UN should ask itself a slightly more uncomfortable question too.

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What happens when the rules designed to protect civilians become more important than the civilians themselves?

Because if international law can tell us exactly when a weapon is legally transferable, but cannot guarantee that the person standing underneath it will survive, then perhaps we have become very good at protecting the rules of war while forgetting the reason we had rules in the first place.

The world does not need fewer rules.

It needs fewer people powerful enough to believe that the rules apply only to everyone else.

Perhaps that is the simplest test of all. A civilian does not care whose flag was printed on the box. They care that the weapon inside it reached them anyway.